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& 1 ELIZ. 2

*Brighton Corporation
(Trolley Vehicles)
Order Confirmation Act, 1952*

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CHAPTER xxi

An Act to confirm a Provisional Order made by the Minister of Transport under the Brighton Corporation (Transport) Act 1938 relating to Brighton Corporation trolley vehicles. [1st August 1952.]

WHEREAS under the authority of section eighteen of the Brighton Corporation (Transport) Act 1938 the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed:

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act. Confirmation of Order in schedule.

2. This Act may be cited as the Brighton Corporation (Trolley Vehicles) Order Confirmation Act 1952.

SCHEDULE

BRIGHTON CORPORATION (TROLLEY VEHICLES)

Provisional Order authorising the mayor aldermen and burgesses of the borough of Brighton to provide maintain equip and use trolley vehicles upon an additional route in that borough.

Short and
collective titles.

1.—(1) This Order may be cited as the Brighton Corporation (Trolley Vehicles) Order 1952.

(2) The Brighton Corporation (Trolley Vehicles) Act and Order 1938 and 1947 and this Order may be cited together as the Brighton Corporation (Trolley Vehicles) Act and Orders 1938 to 1952.

Interpretation.

2. In this Order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them:—

“the borough” means the borough of Brighton;

“the Corporation” means the mayor aldermen and burgesses of the borough;

“the Act of 1938” means the Brighton Corporation (Transport) Act 1938;

“trolley vehicle” has the meaning assigned to it by section 2 (Interpretation) of the Act of 1938.

Power to use
trolley vehicles
upon a certain
route.

3. The Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may use the same upon the following route in the borough in addition to any routes upon which they are already authorised to use trolley vehicles:—

A route (3 furlongs 4 chains or thereabouts in length) commencing at the junction of Carden Avenue with Carden Hill by a junction with route No. 1 and route No. 2 authorised by the Brighton Corporation (Trolley Vehicles) Order 1947 (confirmed by the Brighton Corporation (Trolley Vehicles) Order Confirmation Act 1947) passing in a northerly direction along Carden Avenue to its junction with Crowhurst Road thence along Crowhurst Road to and terminating at the point at which that road turns north including the turning point at the termination of the route:

Provided that the Corporation shall not commence to use trolley vehicles upon the route authorised by this Order until such date as may be agreed between them and the Brighton Hove and District Omnibus Company Limited.

Undertaking to
form part of
trolley vehicle
undertaking.

4. The undertaking authorised by this Order shall be deemed to form part of the trolley vehicle undertaking authorised by the Act of 1938.

Power to
borrow.

5. Subject to the provisions of this Order the Corporation shall have power in addition to and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time

to borrow without the consent of any sanctioning authority for or in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all money so borrowed within such periods as they may determine not exceeding those respectively mentioned in the third column of the said table:—

Purpose (1)	Amount (2)	Period for repayment calculated (except where otherwise stated) from the date or dates of borrowing (3)
(a) The provision of electrical equipment and the construction of other works necessary for working trolley vehicles along the route authorised by this Order.	£2,850	Twenty years.
(b) The payment of the costs charges and expenses of this Order.	The sum requisite	Five years from the passing of the Act of Parliament confirming this Order.

6. It shall not be lawful to exercise the powers of borrowing conferred by this Order (other than the power of borrowing to pay the costs charges and expenses of obtaining and confirming this Order) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for
powers of
Treasury.

7. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate of the borough or out of moneys to be borrowed under the powers of this Order for that purpose.

Costs of Order.

Table of Statutes referred to in this Act

Short title	Session and chapter
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Brighton Corporation (Transport) Act 1938 ...	1 & 2 Geo. 6. c. lxxxix.
Local Authorities Loans Act 1945	8 & 9 Geo. 6. c. 18.
Borrowing (Control and Guarantees) Act 1946 ...	9 & 10 Geo. 6. c. 58.
Brighton Corporation (Trolley Vehicles) Order Confirmation Act 1947	10 & 11 Geo. 6. c. xxv.

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LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4d. net

(77546)

PRINTED IN GREAT BRITAIN